



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAR 3 - 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12232

EXPIRATION DATE: August 31, 1999

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Bell Helicopter
Hurst, Texas
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of Cartridges, power devices, Division 1.3C, installed in an aircraft/helicopter wing and provides relief from the marking, labeling and packaging requirements. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.302, 172.400 and 173.62.
5. BASIS: This emergency exemption is based on the application of Environmental Resource Center, on behalf of Bell Helicopter, dated March 2, 1999, submitted in accordance with 49 CFR 107.117 based on a determination that it is necessary to prevent a potential economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Cartridges, power device	1.3C	UN0275	II

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7. PACKAGING AND SAFETY CONTROL MEASURES: Packaging prescribed is an aircraft/helicopter wing containing up to ~~seven~~ fire suppression devices each containing a cartridge power device. The triggering mechanism for the cartridges, power devices, will be shunted to prevent activation during transportation. 10

8. SPECIAL PROVISIONS:

a. The wing assembly will be transported by Bell Helicopter from Hurst, Texas, to Amarillo, Texas.

b. The marking and labeling requirements of 49 CFR, and 172.302 and 172.400 are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard the motor vehicle used to transport the package covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

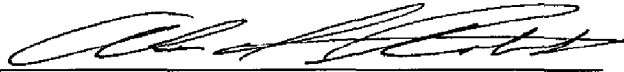
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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